

HOUSE No. 2320

The Commonwealth of Massachusetts

PRESENTED BY:

Norman J. Orrall and Kelly A. Dooner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the position of treasurer-collector in the town of Berkley.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>1/15/2025</i>
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	<i>1/16/2025</i>

HOUSE No. 2320

By Representative Orrall of Lakeville and Senator Dooner, a joint petition (accompanied by bill, House, No. 2320) of Norman J. Orrall and Kelly A. Dooner (by vote of the town) for legislation to authorize the town of Berkley to appoint the position of treasurer-collector in said town. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the position of treasurer-collector in the town of Berkley.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding section 1B of chapter 41 of the General Laws or any other
2 general or special law, bylaw, rule or regulation to the contrary, there shall be in the Town of
3 Berkley the appointed office of treasurer-collector, which office shall have all the powers, duties
4 and responsibilities of and be subject to the liabilities and penalties conferred and imposed by
5 law on the offices of treasurer and collector under the General Laws.

6 SECTION 2. The treasurer-collector shall be appointed and may be removed, after
7 opportunity for a hearing, by the board of selectmen. The board of selectmen may establish an
8 employment contract for a period of up to three (3) years, subject to annual appropriations, with
9 the treasurer-collector for salary, fringe benefits and other conditions of employment, including,
10 but not limited to, severance pay, reimbursement for expenses incurred in the performance of the
11 duties of office, liability insurance and conditions of discipline, termination, dismissal,
12 reappointment, performance standards and leave.

13 SECTION 3. Upon the effective date of this act, the positions of elected treasurer and
14 collector shall be abolished and the term of the incumbents of such offices terminated.
15 Notwithstanding the foregoing, the elected incumbents holding and performing the duties of the
16 offices of treasurer and collector may continue to serve, either until the expirations of the terms
17 for which they were elected, unless they sooner vacate such offices, or until a new treasurer-
18 collector is appointed by the board of selectmen in accordance with section 1 of this act,
19 whichever first occurs.

20 SECTION 4. No contracts or liabilities in force on the effective date of this act shall be
21 affected by the abolition of the elected offices of treasurer and collector and consolidation of
22 certain financial functions of the town as provided in this act, and the appointed office created in
23 this act, shall, in all respects, be the lawful successor of the elected offices so abolished. All
24 records, property and equipment of the offices of the elected treasurer and collector shall be
25 assigned to the office of the appointed treasurer-collector.

26 SECTION 5. This act shall take effect upon its passage.